

BEFORE THE HON'BLE NATIONAL COMPANY LAW TRIBUNAL

INDORE BENCH

IA No. ____ of 2026

IN

CP(IB)/72(MP)2024

{Under Section 21 of the Insolvency and Bankruptcy Code, 2016}

IN THE MATTER OF:

SAMUNNATI FINANCIAL INTERMEDIATION AND SERVICES PRIVATE LIMITED	... PETITIONER
VERSUS MAHAKALI FOODS PRIVATE LIMITED	... CORPORATE DEBTOR

IN THE MATTER OF:

NAVIN KHANDELWAL

Interim Resolution Professional / Applicant

**APPLICATION / REPORT FOR PLACING ON RECORD THE CONSTITUTION OF THE
COMMITTEE OF CREDITORS**

**UNDER SECTION 21 OF THE INSOLVENCY AND BANKRUPTCY CODE, 2016 READ WITH REGULATIONS
13 AND 17 OF THE IBBI (INSOLVENCY RESOLUTION PROCESS FOR CORPORATE PERSONS)
REGULATIONS, 2016 AND RULE 11 OF THE NCLT RULES, 2016**

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Applicant

Navin Khandelwal

Interim Resolution Professional

In the matter of Mahakali Foods Private Limited

IBBI Reg. No.: IBBI/IPA-001/IP-P00703/2017-18/11301

AFA valid till 31-12-2026

Process Specific Email ID: cirp.mahakalifoods@gmail.com

Registered Email ID: navink25@yahoo.com

Address Reg. with IBBI: 206, Navneet Plaza, Old Palasia, Indore - 452018

Date: _____

Place: Indore (M.P.)

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MEMORANDUM OF PARTIES

Applicant:

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SYNOPSIS

1. The Hon'ble National Company Law Tribunal, Indore Bench, vide order dated 31.07.2026 in CP(IB)/72(MP)2024 admitted Mahakali Foods Private Limited into Corporate Insolvency Resolution Process and appointed Mr. Navin Khandelwal, IBBI Registration No. IBBI/IPA-001/IP-P00703/2017-18/11301, as the Interim Resolution Professional. The order was uploaded on the NCLT website on 03.08.2026.
2. In compliance with Regulation 6 of the CIRP Regulations, the Applicant caused a public announcement dated 06.08.2026 inviting claims from creditors. The last date specified for submission of claims was 17.08.2026.
3. The Applicant has collated and verified the claims received and has constituted the Committee of Creditors under Section 21 of the Code. The CoC presently comprises Samunnati Finance Private Limited with admitted claim of ₹6,08,55,576.00 and voting share of 52.7163, and Bank of India with admitted claim of ₹5,45,84,244.48 and voting share of 47.2837.
4. The present application/report is being filed to place on record and certify the constitution of the Committee of Creditors in terms of Regulation 17 of the CIRP Regulations.

Applicant

Navin Khandelwal

Interim Resolution Professional

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LIST OF DATES AND EVENTS

Date	Event
31.07.2026	CIRP commenced against Mahakali Foods Private Limited and Mr. Navin Khandelwal was appointed as IRP.
03.08.2026	Admission order uploaded on the NCLT website.
06.08.2026	Public Announcement issued inviting claims.
17.08.2026	Last date specified in the Public Announcement for submission of claims.
_____	Claims collated and verified and Committee of Creditors constituted.
_____	Present report/application filed before the Hon'ble NCLT, Indore Bench.

Applicant

Navin Khandelwal

Interim Resolution Professional

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APPLICATION / REPORT

MOST RESPECTFULLY SHOWETH:

1. That this Hon'ble Tribunal vide order dated 31.07.2026 passed in CP(IB)/72(MP)2024 was pleased to commence the Corporate Insolvency Resolution Process in respect of Mahakali Foods Private Limited and appoint the Applicant as Interim Resolution Professional. The order was uploaded on the NCLT website on 03.08.2026. A copy of the order is annexed as Annexure-01.
2. That pursuant to the said order and in compliance with Regulation 6 of the CIRP Regulations, the Applicant made a Public Announcement on 06.08.2026 inviting claims from creditors. The last date specified for submission of claims was 17.08.2026. A copy of the Public Announcement is annexed as Annexure-02.
3. That the Applicant has collated and verified the claims received on the basis of the documents and information made available to him. The List of Creditors / admitted claims is annexed as Annexure-03. The same remains subject to revision in accordance with the Code and Regulations upon receipt of further documents, information or claims.
4. That after collation and verification of claims, the Applicant has constituted the Committee of Creditors under Section 21 of the Insolvency and Bankruptcy Code, 2016. The constitution of the CoC is as under:

Financial Creditor	Admitted Claim (₹)	Voting Share	Status
Samunnati Finance Private Limited	60,855,576.00	52.7163%	CoC Member
Bank of India	54,584,244.48	47.2837%	CoC Member
TOTAL	115,439,820.48	100.0000%	

5. The aggregate admitted financial debt represented in the CoC is ₹11,54,39,820.48. The voting shares have been computed in proportion to the admitted financial debt of the respective CoC members.
6. A copy of the report certifying constitution of the Committee of Creditors is annexed as Annexure-04.
7. The subject matter of the present application/report falls within the jurisdiction of this Hon'ble Tribunal.
8. The present filing is made bona fide for placing on record the constitution of the Committee of Creditors and for compliance with the applicable provisions of the Code and CIRP Regulations.

RELIEF / PRAYER

In view of the facts stated above, the Applicant respectfully prays that this Hon'ble Tribunal may be pleased to:

- a. Take on record the constitution of the Committee of Creditors of Mahakali Foods Private Limited, comprising Samunnati Finance Private Limited having 52.7163% voting share and Bank of India having 47.2837% voting share;
- b. Take on record the List of Creditors / admitted claims filed along with the present application/report; and
- c. Pass such other order(s) as this Hon'ble Tribunal may deem fit and proper in the facts and circumstances of the case.

Applicant

Navin Khandelwal

Interim Resolution Professional

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SUPPORTING AFFIDAVIT

I, Navin Khandelwal, Interim Resolution Professional of Mahakali Foods Private Limited, having office at 206, Navneet Plaza, Old Palasia, Indore - 452018, do hereby solemnly affirm and state as under:

1. I am the Applicant / Interim Resolution Professional in the present matter and am competent and authorised to swear this affidavit.
2. I have read and understood the contents of the accompanying application/report. The statements made therein are true and correct to my knowledge and belief, based on the records of the CIRP, claims and documents made available to me.
3. The annexures filed with the application/report are true copies of their respective originals / records available with me.

DEPONENT

VERIFICATION

Verified at Indore, Madhya Pradesh on this ____ day of August 2026 that the contents of the above affidavit are true and correct to my knowledge and belief and that nothing material has been concealed therefrom.

DEPONENT